STANDARD OPERATING PROCEDURE			P-3800	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **03/19/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES **CALEA 61.1.2, 61.1.4, 61.1.5, 61.1.7**		
SUBJECT TRAFFIC LAW ENFORCEMENT		CROSS REFERENCE P-3500 COMMUNICATION PROCEDURES		

I. Purpose:

The purpose of this policy is to establish procedures for conducting traffic law enforcement and the specific procedures for traffic stops.

II. Policy:

The enforcement of traffic laws by the Sarpy County Sheriff's Office Road Patrol Division is designed to reduce traffic crashes and to aid in the safe and expeditious flow of vehicular and pedestrian traffic

III. Procedure:

A. Traffic Stops-Deputy Responsibilities: Deputies who observe traffic law violations are expected to take appropriate enforcement action, when practical.

1. Location of Stop: Deputies should conduct traffic stops in safe locations considering such factors as:

a) The need to make the stop immediately as opposed to delaying the stop until a preferred location can be selected.
b) The amount of traffic.
c) Roadway width and shoulder make-up.
d) Lighting conditions.

2. Notification: Deputies shall notify Communications of **all** traffic stops and motorist assists. Deputies should attempt to make notification prior to initiating the traffic stop. Deputies shall follow these procedures:

a) The deputy shall contact Communications by stating his or her district assignment, stating "Traffic" or "Motorist Assist", and the location (e.g. District 353, Traffic, 25th Street and Capehart Rd.).

b) Deputies shall wait for Communications to respond with their district assignment (e.g. District 353).

c) Deputies shall then provide the following:

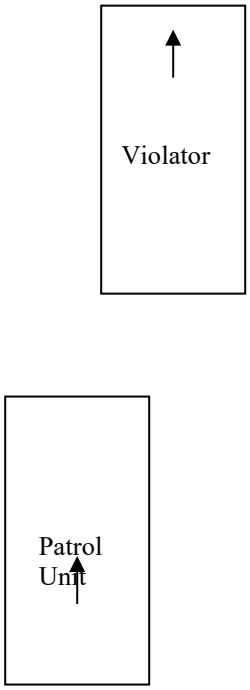
(1) The license plate state and number (letters phonetically).
(2) Vehicle color, make, and model.
(3) Number and description of occupants (optional).
(4) Reason for stop (optional).

3. Patrol Unit Position:

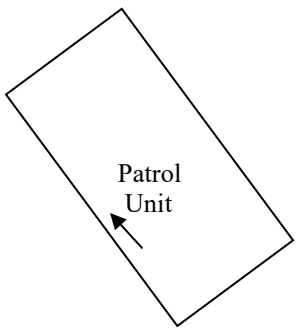
a) Deputies shall stop far enough behind the violator's vehicle so that the rear tires are visible, when possible (approximately 20 feet).

b) Deputies may use the parallel off-set position, in-line or the canted position depending on conditions (time of day, traffic conditions, roadway width, etc.). The parallel off-set and canted positions are recommended. The parallel off-set position should leave approximately half a vehicle width to the left of the violator's vehicle to provide a safe lane of approach.

Parallel Off-Set Position



Canted Position



4. Approaching the Vehicle:

a) Deputies should watch for on-coming traffic prior to exiting the patrol unit.

b) Deputies should not slam their doors to avoid alerting occupants of their impending arrival.

c) Deputies should check the trunk lid and doors to ensure they are latched.

d) Deputies should inspect the interior of the vehicle.

e) Deputies should keep their strong hand free.

f) Deputies should position themselves just behind and clear of the driver's door (on a driver's side approach).

(1) Deputies may also approach from the passenger side. The passenger side approach may provide enhanced safety on very busy roadways and may provide the deputy an element of surprise.

(2) For a two-person patrol unit, the second deputy may approach the passenger front door to examine the interior of the vehicle and then shall remain at the rear passenger side of the vehicle and observe the occupants.

g) Deputies should remain in visual contact with the occupants and pay particular attention to the individual(s)' hands. Deputies should maintain periodic visual contact with the occupants after returning to their patrol unit to take enforcement action (run records checks, write a citation, etc.)

5. Violator Contact:

a) Deputies shall be courteous and professional in their conversations with violators. Deputies shall not engage in argument or protracted debate regarding the violation.

b) Upon contact, deputies shall identify themselves and request the driver's operator's license, registration (or proof of ownership), and proof of insurance. After receiving the documents, the deputy shall

inform the driver of the reason of the stop. Deputies may inform the driver of the reason prior to asking for the documents.

c) Deputies may request identification from other occupants and should conduct a records check on all identified parties. (Maryland v. Wilson 519 US 408) and (US v. Williams 419 F.3d 1029).

d) If deputies have reason to approach the front of the vehicle (e.g. to check headlights, check license plate, etc.), they should request the driver turn off the vehicle.

e) When issuing a citation, deputies should briefly and clearly explain the procedures for the violator regarding the citation, including:

(1) The exact laws violated.
(2) The court appearance time, date, location and total fine amount (when not a mandatory court date).
(3) The driver's eligibility for waiver and payment of fine.
(4) The driver's eligibility to participate in the Safety Training Option Program (STOP) to dismiss the citation. Deputies shall provide a STOP card (when citation is for a moving violation) or direct the driver to the phone number listed on the back of the citation for details.

6. Dispositions:

a) **No Violation:** Vehicle was stopped for no visible license plates but has proper documentation.

b) **Verbal Warning:** Used only when completing a written warning is not practical. Examples include:

(1) A priority call arising, requiring the Deputy to quickly terminate the traffic stop to respond to the priority call; or
(2) Extenuating circumstances.
(3) If a search was conducted, a verbal warning shall not be issued. A written warning, citation, or information report shall be completed.
(4) At the conclusion of a verbal warning, a non-enforcement contact must be completed in TraCS.

c) **Written Warning:** Used for minor violations when aggravating circumstances are not present.

d) **Citation:** Used for serious traffic violations, or when aggravating circumstances are present.

e) **Custodial Arrest**: Custodial arrests are justified in cases involving serious violations.

(1) Violations in which an arrest is warranted include, but not limited to:

(a) Willful Reckless Driving.
(b) Driving Under the Influence.
(c) Flight to Avoid Arrest.
(d) Motor Vehicle Homicide.

7. **Disposition Selection:** Deputies should rely upon the objective facts and circumstances surrounding the violation, with consideration for the aggravating and mitigating circumstances:

a) **Aggravating Circumstances:**

(1) The violator was involved in a traffic crash or near collision.
(2) The violator caused significant interference with traffic, or another motorist was required to take evasive action.
(3) There was significant traffic present.
(4) The violation was related to a “road rage” incident.
(5) The violator has an extensive history of traffic statute violations.

b) **Mitigating Circumstances:**

(1) There was very light traffic.
(2) There was no interference with other traffic.
(3) The violation was minor in nature.

8. **Additional Considerations:**

a) Deputies shall not take into custody for a misdemeanor, any member of the Nebraska Legislature while in session or within 15 days of the beginning or end of the session. Deputies may issue a citation to any member of the Nebraska Legislature at any time but shall ensure the court date does not correspond to any Legislative session.

b) Members of the armed forces are exempt from laws relating to the expiration and renewal of drivers’ licenses. Members and their spouses who are stationed in Nebraska on active duty are exempt from the state’s licensing requirements, if the vehicle is properly licensed in their state of residence.

c) Juveniles:

(1) Juveniles age 14 and older may be issued a traffic citation.
(2) Juveniles age 13 and younger shall be referred to a Juvenile Court Officer (Juvenile Probation).

d) Foreign Diplomats and Consular Officials:

(1) Diplomats and consular officers such as Consuls General, Deputy Consuls General, and Vice Consuls are afforded Diplomatic Immunity.

(2) Citations in lieu of arrest for traffic infractions may be issued to diplomatic officials regardless of rank or status.

(3) Those with diplomatic immunity shall not be physically arrested, but if they present a continuing danger to the public, such as DUI, they may be detained until arrangements can be made for his or her safety.

(4) Diplomatic vehicles shall not be physically impounded or searched.

(5) Family members of a consular officer cannot claim immunity.

B. Uniform Enforcement Practices:

1. **Driving Under the Influence of Alcohol/Drugs:** Recognizing that intoxicated and drug impaired drivers are a significant threat to the safety of others, the Sheriff's Office will strictly enforce violations where a driver is operating a motor vehicle under the influence of alcohol or drugs. For specific guidelines on DUI procedures refer to (SOP P-3900 Driving Under the Influence Investigations).

2. **Suspended/Revoked Drivers:** Operators of motor vehicles, whose driving privileges have been suspended or revoked by the state of Nebraska, will be cited and street released in accordance with applicable state statute. Suspended or revoked drivers from any other state or jurisdiction in the United States will be cited for no operator's license in accordance with the County Attorney's Office guidance. Drivers suspended or revoked through this state or any other, or drivers not issued an operator's license, will not be allowed to drive from the scene.

3. **Speed Violations:** Drivers who operate a vehicle in excess of the posted speed limit or at speeds that are unsafe for conditions create an increased risk of crashes and increase the severity of injuries resulting from crashes. The Sheriff's Office regards violations of speed limits as serious and hazardous, warranting enforcement action.

4. **Other Hazardous Violations:** There are many traffic violations that could be considered hazardous. Such violations would be those that could, under certain circumstances, cause crashes. Some examples of hazardous violations include, but are not limited to:

   (1) Failing to Obey a Traffic Control Device.
   (2) Failure to Yield Right of Way to another vehicle or a pedestrian.
   (3) Careless, reckless, and willful reckless driving.
   (4) Improper lane change/usage.

5. **Off-Road Vehicles (dirt bikes, minibikes, motorized scooters, ATV's, snowmobiles, etc.):** Off-road vehicles are generally not equipped to be operated on public roadways. Deputies shall be knowledgeable of applicable laws governing the use of off-road and other non-traditional vehicles and take appropriate enforcement action. Sarpy County Ordinance 03-02-01

6. **Equipment Violations:** In order for a vehicle to be operated safely, it must be properly and legally equipped. However, in many cases, a driver may not be aware that a piece of equipment is not operating properly. Written warnings for minor equipment violations may be appropriate, especially if the offender is not guilty of repeated equipment or other violations.

7. **Public Carrier/Commercial Vehicle Violations:** Operators of commercial vehicles such as taxis, semi-trucks, buses, limousines, etc. must comply with all applicable laws, rules, and regulations, which will be strictly enforced by deputies. However, the deputy's discretion, training, experience, and knowledge will determine the action to be taken. The Nebraska State Patrol Carrier Enforcement Division may be called for assistance if a commercial violation is suspected (i.e., weight limits).

8. **Non-Hazardous Violations:** Non-hazardous violations are those that are not likely to involve or expose persons or property to risk, loss, or damage (i.e., expired plates, no license on person, etc.). The type of enforcement taken will be at the discretion of the deputy. Any willful or wanton violation should be handled with appropriate action to elicit future compliance.

9. **Multiple Violations:** The more violations a deputy witnesses an offender commit, the more the deputy should consider issuing a citation as opposed to a written warning.

10. **Newly Enacted Laws/Regulations:** When new laws and/or regulations become effective, the enforcement guidelines prescribed within the text of each new law/regulation will be followed. Sheriff's Office personnel will keep current on new laws and regulations as they are enacted.

11. **Violations Resulting in Crashes:** Deputies will make arrests or issue citations to offenders when probable cause exists that a crash is the result of a law violation, except when the Crash Team is utilized.

12. **Bicycle and Pedestrian Violations:** Deputies will enforce pedestrian and bicycle traffic violations following the same philosophy applicable to motor vehicle violations.

    (1) Bicycle - Nebraska State Statute 60-6314 states that any person who operates a bicycle upon a roadway will have all the rights and will be subject to all the duties applicable to the driver of a motor vehicle.

    (2) Pedestrian - Nebraska State Statutes 60-6152-6157 regulate pedestrian traffic while walking upon and traversing roadways.

C. Prosecutor Notes:

1. In lieu of writing a complete incident/arrest report, the “Comments for the Prosecutor” field in TraCS citations may be used to note specific details and facts regarding a statute violation.

2. For the following statutes, an incident/arrest report is not required. However, Deputies shall write specific details about the citation and offense in the “Comments for the Prosecutor” section of the electronic citation.

    (1) Driving Under Revocation/Suspension

    (a) Deputies should note the date of revocation/suspension and the reason listed on the DMV abstract.

    (2) No Operator’s License

    (a) If the driver has a “dummy” DMV abstract, the appropriate OLN should be listed in the citation.

    (3) Willful Reckless Driving/Reckless Driving

    (a) Deputies should note the specific actions of the driver to warrant the charge of willful reckless or reckless driving.

    (4) Exhibition of Speed

    (a) Deputies should note the specific actions of the driver to warrant the charge of exhibition of speed

(5) Violation of Provisional Operator's Permit (POP)

(a) Deputies should note the specific violation of the terms of the provisional operator's permit.

3. If a Deputy believes the facts of the case cannot adequately be conveyed in the "Comments to the Prosecutor" section, he/she shall complete an incident/arrest report.